

		<i>An Alternative Dispute Resolution (ADR) Review hearing is scheduled for February 5, 2027 at 8:30 a.m. in Department C44.</i> Defendants shall give notice.
11	Solorzano vs. Origence Lending, Inc. 2026-01554439	Motion to Compel Arbitration Defendants CU Direct Corporation dba Origence, erroneously sued as Origence Lending, Inc., and Roselie Javier’s motion to compel plaintiff Liseth Solorzano to arbitrate her claims, is GRANTED. (9 U.S.C, § 2; Code Civ. Proc., § 1281.2 [authorizing motion].) Plaintiff Liseth Solorzano is ordered to arbitrate her claims in this action against moving parties, pursuant to the parties’ arbitration agreement. Moving parties have met their initial burden of presenting evidence of an executed arbitration agreement requiring arbitration of plaintiff’s claims in this action. (<i>Rosenthal v. Great Western Fin. Securities Corp.</i> (1996) 14 Cal.4th 394, 413 [moving party’s initial burden to present evidence of arbitration agreement]; Levine Decl. in support of motion, ¶¶ 5-15, Ex. C thereto [DocuSign “Certificate of Completion”], Ex D thereto, §§ 5, 7 [“Arbitration Policy & Agreement” requiring both parties to arbitrate “all Claims between Employee and the Company that the Employee may have against the Company, or the Company may have against the Employee that arise prior to or at any time after the Effective Date of this Agreement,” including “[w]rongful or retaliatory discharge, demotion,” “[d]iscrimination, harassment or retaliation based on sex, gender, gender identity, race, sexual orientation, marital status, religion, national origin, veteran status, age, pregnancy, leaves of absence, handicap, genetic condition, a physical or mental disability, whistleblowing, or any other characteristic or activity protected by applicable law,” claims under “the California Fair Employment and Housing Act,” “[t]ortious conduct of any type,” and “[a]ny other statutory or common law claims under any law of the United States, or any State, municipality, local agency or any other government entity, including any applicable laws relating to discrimination in employment and/or wage and hour laws, and/or, violations providing for injunctive, declaratory, and/or other equitable relief”].) While plaintiff contends she did not “knowingly” agree to arbitrate employment claims, she does not dispute executing the Arbitration Policy & Agreement, or that it applies to her claims in this action.

		(<i>Bolanos v. Khalatian</i> (1991) 231 Cal.App.3d 1586, 1590 [“When a person with the capacity of reading and understanding an instrument signs it, he may not, in the absence of fraud, coercion or excusable neglect, avoid its terms on the ground he failed to read it before signing it”]; <i>Randas v. YMCA of Metropolitan Los Angeles</i> (1993) 17 Cal.App.4th 158, 163 [“It is well established, in the absence of fraud, overreaching or excusable neglect, that one who signs an instrument may not avoid the impact of its terms on the ground that he failed to read the instrument before signing it;” internal citations omitted]; see also <i>Madden v. Kaiser Foundation Hospitals, Inc.</i> (1976) 17 Cal.3d 699, 710 [“general rule that one who assents to a contract is bound by its provisions and cannot complain of unfamiliarity with the language of the instrument”]; <i>Mt. Holyoke Homes, L.P. v. Jeffer Mangels Butler & Mitchell, LLP</i> (2013) 219 Cal.App.4th 1299, 1309 [generally, a party has “no duty to point out the existence of the arbitration provision or to explain its significance, and their failure to do so does not invalidate the arbitration contract”].) Plaintiff also contends that the Arbitration Policy & Agreement here is procedurally and substantively unconscionable. (<i>Armendariz v. Foundation Health Psychcare Services</i> (2000) 24 Cal.4th 83, 114 [in order for a court to exercise its discretion to refuse to enforce a contract under the doctrine of unconscionability, both procedural unconscionability and substantive unconscionability must be present].) Plaintiff has shown some procedural unconscionability, in that she avers that she “understood this document to be a routine, company-required document that I was expected to complete during my employment,” that it was “mandatory and standard,” and that “failing to complete it quickly would delay or jeopardize my employment, and my eligibility for the holiday bonus,” as well as the fact that the arbitration rules were not attached. (Solorzano Decl., ¶¶ 4, 5, 7; <i>OTO, L.L.C. v. Kho</i> (2019) 8 Cal.5th 111, 127–128 [standardized arbitration agreement as condition of employment]; <i>Carbajal v. CWPSC, Inc.</i> (2016) 245 Cal.App.4th 227, 244–245 [collecting cases and noting that “the failure to provide a copy of the governing rules ‘contributes to oppression because the employee ‘is forced to go to another source to find out the full import of what he or she is about to sign and must go to that effort prior to signing;’” citations omitted].) But plaintiff has not shown substantive unconscionability, as also required. (<i>Armendariz v. Foundation Health Psychcare Services, supra</i> at 114.) The court finds that any discovery limitations are insufficient to establish substantive unconscionability, given that
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		the arbitrator also has discretion to allow additional discovery. (Levine Decl., Ex. D, § 13(f); see also <i>Ramirez v. Charter Communications, Inc.</i> (2024) 16 Cal.5th 478, 506 [“Allowing the arbitrator to deviate from agreed-upon default discovery limits ensures that neither party will be unfairly hampered in pursuing a statutory claim based on circumstances that arise postformation”]; <i>Armendariz v. Foundation Health Psychcare Services, supra</i> at 105–106 [parties to an arbitration agreement are “permitted to agree to something less than the full panoply of discovery provided” in the California Arbitration Act]; <i>Martinez v. Master Protection Corp.</i> (2004) 118 Cal.App.4th 107, 118 [“discovery limitations are an integral part of the arbitration process ... [a]dequate discovery is not synonymous with unfettered discovery”]; <i>Dotson v. Amgen, Inc.</i> (2010) 181 Cal.App.4th 975, 983 [“arbitration is meant to be a streamlined procedure ... [l]imitations on discovery, including the number of depositions, is one of the ways streamlining is achieved”].) Nor has plaintiff shown that the Arbitration Policy & Agreement permits defendants to recover attorney fees otherwise unavailable by law. (Cal. Gov’t Code, § 12965, subd. (c)(6) [governing recovery of attorney fees in FEHA actions; Ex. D to Levine Decl., § 13(h); [with exceptions not relevant here, “each Party shall pay its own attorneys’ fees and costs ... <u>[i]f however, any Party prevails on a statutory claim that affords the prevailing party attorneys’ fees and costs</u>, or if there is a written agreement providing for attorneys’ fees and costs, the arbitrator may award reasonable fees and costs to the prevailing party <u>in accordance with applicable law</u>,” emphasis added].) Defendants’ evidentiary objection nos. 9 and 11 to the Solorzano Decl. are SUSTAINED (relevance) and otherwise OVERRULED. This action is STAYED pending completion of arbitration. (Code Civ. Proc., § 1281.4.) <i>An Alternative Dispute Resolution (ADR) Review hearing is scheduled for February 26, 2027 at 8:30 a.m. in Department C44.</i> Moving parties shall give notice.
12	Weaver vs. Chauhan 2025-01500925	Demurrer to Amended Complaint No tentative. The court will address proof of service issues before ruling on the merits of the demurrer.